

Αθήνα, 07-01-2025

Αριθ. Πρωτ.: 41

Απόφαση 4/2025

(Μονοπρόσωπο Όργανο)

Ο Πρόεδρος της Αρχής, ως μονοπρόσωπο όργανο κατά το άρθρο 17 παρ. 1 του ν. 4624/2019 (ΦΕΚ Α' 137), στο πλαίσιο των αρμοδιοτήτων που προβλέπονται στα άρθρα 4 παρ. 3 και 10 παρ. 4 του Κανονισμού Λειτουργίας της Αρχής (ΦΕΚ Β' 879/25.02.2022), συνεδρίασε μέσω τηλεδιάσκεψης την 3η-10-2024 προκειμένου να εξετάσει την υπόθεση που αναφέρεται κατωτέρω στο ιστορικό της παρούσας απόφασης. Παρούσα χωρίς δικαίωμα ψήφου ήταν η Κυριακή Καρακάση, νομική ελέγκτρια – δικηγόρος, καθώς και η Ειρήνη Παπαγεωργοπούλου, υπάλληλος του τμήματος διοικητικών υποθέσεων, ως γραμματέας.

Η Αρχή έλαβε υπ' όψιν της τα παρακάτω:

Υποβλήθηκε ενώπιον της Αρχής Προστασίας Δεδομένων η υπ' αριθμ. πρωτ.

Γ/ΕΙΣ/6285/07-09-2023

καταγγελία

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συμπληρωματικών αυτής στοιχείων (βλ. το με αριθμ. Πρωτ. Γ/ΕΙΣ/8666/06-12-2023 μήνυμα ηλεκτρονικού ταχυδρομείου του καταγγέλλοντος κοινοποιούμενο ταυτόχρονα και στην καταγγελλόμενη εταιρεία), σύμφωνα με την οποία ο τελευταίος, αιτήθηκε από την εταιρεία με την επωνυμία «doValue Greece Ανώνυμη Εταιρεία Διαχείρισης Απαιτήσεων από Δάνεια και Πιστώσεις», στις ..., όπως του αποσταλούν αντίγραφα των ηχογραφημένων συνομιλιών που είχε με εκπροσώπους της εν λόγω εταιρείας και τον αφορούσαν, ενώ ζήτησε επίσης να λάβει γνώση των προσωπικών του δεδομένων που τηρούνται στο αρχείο της ως άνω καταγγελλομένης. Σύμφωνα δε με τα καταγγελλόμενα, τα ανωτέρω αιτήματά του δεν έχουν απαντηθεί ικανοποιητικά από την ανωτέρω εταιρεία, καθώς, με το από ... μήνυμα της τελευταίας προς τον καταγγέλλοντα αφενός απαιτήθηκε να παραστεί ο αιτών αυτοπροσώπως στην έδρα της εταιρείας προκειμένου να παραλάβει τα αιτηθέντα αντίγραφα των επίμαχων ηχογραφημένων συνομιλιών, αφετέρου απαντήθηκε αόριστα το αίτημα που αφορούσε στην ενημέρωση για τα τηρούμενα από την εταιρεία προσωπικά δεδομένα του καταγγέλλοντος. Καταγγέλλεται δε, ότι τηλεφωνικά η εν λόγω εταιρεία αρνήθηκε στον καταγγέλλοντα, όπως του παράσχει εξ αποστάσεως πρόσβαση στα ζητηθέντα προσωπικά του δεδομένα.

Η Αρχή, στο πλαίσιο εξέτασης της ανωτέρω καταγγελίας, με το με αριθμ. πρωτ.

Γ/ΕΞ/3106/05-12-2023 έγγραφό της, διαβίβασε στην εν λόγω εταιρεία την επίμαχη

καταγγελία ζητώντας από την τελευταία να διευκρινίσει εάν ο καταγγέλλων άσκησε, όπως

ισχυρίζεται, το δικαίωμα πρόσβασης σε δεδομένα που τον αφορούν και σε ποια

συγκεκριμένα, καθώς και εάν και με ποιον τρόπο η εταιρεία ανταποκρίθηκε στο ως άνω

αίτημα του καταγγέλλοντος ή και για ποιο λόγο τυχόν δεν το ικανοποίησε εμπροθέσμως, και

να επισυνάψει παράλληλα τα σχετικά έγγραφα. Επιπλέον, ζητήθηκαν διευκρινίσεις σχετικά

με το ζήτημα εάν οι εν λόγω συνομιλίες έχουν καταγραφεί από την εν λόγω εταιρεία, και σε

καταφατική περίπτωση με ποια νομική βάση. Τέλος, ζητήθηκε από την εταιρεία να

διευκρινίσει εάν και με ποια διαδικασία ικανοποιεί τα αιτήματα πρόσβασης, λαμβανομένου

ιδίως υπ' όψιν του άρθρου 12 παρ. 2 του ΓΚΠΔ, σύμφωνα με το οποίο «Ο υπεύθυνος

επεξεργασίας διευκολύνει την άσκηση των δικαιωμάτων των υποκειμένων των δεδομένων

που προβλέπονται στα άρθρα 15 έως 22. ...».

Κατόπιν αυτού, η καταγγελλόμενη εταιρεία απέστειλε το με αριθ. πρωτ. Γ/ΕΙΣ/9034/20-12-2023 απαντητικό έγγραφο, με το οποίο, μεταξύ άλλων, επιβεβαίωσε την από ... άσκηση ενώπιόν της του επίμαχου δικαιώματος πρόσβασης του καταγγέλλοντος. Αnéφερε δε ότι απέστειλε στην ταχυδρομική διεύθυνση του καταγγέλλοντος, που ήταν καταχωρημένη στο εταιρικό διαχειριστικό σύστημα, την από ... επιστολή με την οποία ενημέρωσε τον τελευταίο ότι έχει εξαχθεί από τα συστήματά της το σχετικό αρχείο καταγεγραμμένων συνομιλιών για το χρονικό διάστημα από ... έως ... και βρίσκεται διαθέσιμο για παραλαβή από τα γραφεία της εταιρείας. Επίσης, η ανωτέρω επιστολή παρέθετε λίστα με τα υπό επεξεργασία προσωπικά δεδομένα του καταγγέλλοντος. Στο πλαίσιο της ως άνω απάντησης της καταγγελλομένης προς την Αρχή αναφέρεται αναλυτικά η διαδικασία ικανοποίησης των σχετικών αιτημάτων πρόσβασης σε αντίγραφα ηχογραφημένων συνομιλιών των πελατών.

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in cases where the latter are unable to come to the company's premises to collect the records extracted by the company. Specifically, it is noted that in those exceptional cases where the applicant resides abroad, the respondent sends the file with the recorded conversations to the address declared by the debtor via courier, while in the event that the debtor wishes to receive the said conversations via electronic mail, a special procedure is followed in which a telephone communication from the debtor to the company is required in order to obtain the special access code that will allow him to access the file, which he is to receive via separate electronic correspondence. Subsequently, the company states that the complainant resubmitted the above request for access on ... by submitting it through the corporate website and in response to this, he received the email dated ..., in which the respondent attached the above letter dated ... that had been sent to him by postal mail, informing him that his request dated ... had been fulfilled and inviting him again to contact the corporate call center to schedule an appointment for the collection of the recorded calls. Furthermore, the company states that on ... the complainant, during a telephone communication with a company representative, requested additional documents concerning him, which were sent to him via the email dated Moreover, it is noted that in the emails dated ... and ... the complainant informed the company that he resides abroad and that the postal address registered in the corporate system is no longer valid, requesting the latter to be deleted, while also asking, according to the respondent, for further clarifications regarding his personal data. In response to the above, the company claims that it responded with its email dated ... to the complainant.

Following this, the Authority summoned the respondent company to a hearing before the President of the Authority as a single-member body via videoconference, with the number G/EXE/2573/23-09-2024 Call, and the complainant with the number G/EXE/2572/23-09-2024 Call on 03-10-2024, on which date the complainant appeared in person, while the respondent appeared and presented its views through its lawyer, Maria Androulaki (AM/DSA ...), while representatives of the aforementioned respondent, B as Head of the Complaints Department, C as a specialist in personal data protection issues, and D as Data Protection Officer were present to provide clarifications where deemed appropriate during the discussion. Furthermore, after the said hearing, both parties were granted a deadline to submit a memorandum to further support their claims until 11-10-2024.

Subsequently, the respondent company submitted its memorandum in due time, namely on 11-10-2024, with the number G/INS/7896/14-10-2024, along with the attached documents, in which it summarizes, among other things, the following: Firstly, it confirms the exercise of the contested access requests of the complainant both to the recorded conversations concerning him and to his personal data being processed by the respondent company. Furthermore, it largely reiterates the claims it made in its aforementioned response with number G/INS/9034/20-12-2023 to the Authority, additionally stating that the letter dated ... from the respondent as a response to the complainant was sent to the complainant's email address, as the respondent acknowledges that it was possible to identify him through the other information it had about him. Likewise, the respondent company argues that in its email dated ... it again provided the personal data of the complainant that are recorded in the company's systems, emphasized the need to update his details, and invited him again to collect the file of recorded calls without the company asserting any claim regarding the inability to identify him. Additionally, the respondent states that the complainant did not update his details, although he had

been requested to do so, according to the company's claims, while it is noted that the complainant insisted on being granted remote access to his file's data "refusing to discuss any alternatives." Furthermore, the respondent company reiterates the internal process for fulfilling access requests for recorded conversations of its customers, also mentioning the alternative of sending them via electronic mail for the exceptional cases where the complainant is unable to come to the company's premises to collect them and has requested to receive them electronically. Subsequently, the respondent states that after the examination of the case at the hearing, the Data Protection Officer of the company attempted to contact the complainant.

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by phone in order to ascertain whether there is any pending request from him, but the complainant did not respond to the calls, and as it was not possible to locate any evidence of electronic transmission of the relevant recorded conversations to the complainant, they were sent to him with the email message dated ..., as this was submitted to the Authority, simultaneously advising the complainant to contact the Data Protection Officer of the company in order to obtain the key code for opening the relevant files, as provided for in the aforementioned internal corporate policy. Finally, the respondent states that it has provided explicit instructions to its representatives to inform applicants clearly and promptly about alternative ways to receive calls in exceptional cases where there are reasons that preclude their receipt in person at the corporate headquarters.

The complainant submitted his memorandum numbered Γ/ΕΙΣ/7682/06-10-2024 in a timely manner, in which he briefly states, among other things, the following: Firstly, he mentions that by mistake during the hearing before the Authority, he admitted that he received the requested recorded conversations, a fact that had not occurred until the discussion before the Authority. Furthermore, he emphasizes that the relevant access request was addressed electronically to the company (email) requesting to be informed in the same manner and notifying that he resides abroad, while he claims that there was no challenge from the company regarding his identity nor regarding the request submitted electronically. The Authority, having taken into account the above,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Article 5 paragraph 1 of the GDPR sets out the principles that must govern a processing operation. According to the principle of accountability introduced by this article, it is stated in paragraph 2 thereof that the data controller "bears the responsibility and is in a position to demonstrate compliance with paragraph 1 ('accountability')." As the Authority has ruled,¹ with the GDPR a new compliance model has been adopted, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the additional duty to demonstrate itself and at any time its compliance with the principles of Article 5 paragraph 1 of the GDPR.

2. Since according to Article 15 paragraphs 1, 3, and 4 of the GDPR "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, the right of access to personal data and the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular, recipients in third countries or international organizations, d) where possible, the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject or the right to object to such processing, f) the right to lodge a complaint with a supervisory authority, g) when the personal data are not collected from the data subject, any available information as to their source, h) the existence of

automated decision-making, including profiling, as provided for in Article 22 paragraphs 1 and 4 and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject. 2. [...] 3. The data controller provides a copy of the

1 See Authority Decision 26/2019, paragraph 8, available on its website.

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of personal data being processed. [...] If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format. 4. The right to receive a copy referred to in paragraph 3 does not adversely affect the rights and freedoms of others.».

With these provisions, the right of access of the data subject to their personal data is established. In the context of this right, the data subject must, on the one hand, have access to personal data that has been collected and pertains to them, in order to be informed and to verify the accuracy and nature of the processing of their data and to validate the lawfulness of the processing, and on the other hand, be able to exercise this right easily and at reasonable intervals.² The data controller must provide remote access to a secure system through which the data subject can gain direct access to the data concerning them.³

Moreover, the Authority consistently accepts that the data subject has the right to know whether personal data concerning them is being processed, as well as to gain access to it, without the need to invoke a legitimate interest⁴ since this is inherent and forms the basis of the right of access, that is, the right of the data subject to be informed about information that concerns them and has been recorded in a file maintained by the data controller, so that the fundamental principle of law for the protection of personal data, which consists of the transparency of processing as a prerequisite for any further control by the data subject of its lawfulness, is realized.⁵ Similarly, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access.⁶ Furthermore, the obligation to satisfy the right of access is universal, meaning it pertains to all information concerning the data subject and, additionally, does not depend on the invocation of the reasons for exercising the right.⁷ Consequently, the satisfaction of the right does not depend on a prior assessment by the data controller as to whether the exercise of the right is justified or not.⁸

Furthermore, regarding the determination of the scope of the limits of the right of access of a data subject to their personal data, access is understood to extend to the personal data as such, without a general description of such data being sufficient nor a mere reference to the categories of personal data processed by the data controller. Therefore, data subjects are entitled to access all data that is being processed and that concerns them, unless specifically provided for by the GDPR limits or restrictions (see Articles 12(5), 15(4), 23, 89(2) and (3), 85(2) of the GDPR). Finally, it is noted that if the data subject does not explicitly request otherwise, the request to exercise the right of access is understood as general and includes all personal data concerning the respective data subject.⁹

3. Since according to Article 12 of the GDPR “1. The data controller takes appropriate measures to provide the data subject [...] with any communication in the context of Articles 15 to 22 [...] 2. The data controller facilitates the exercise of the rights of data subjects provided for in Articles 15 [...] 3. The data controller provides the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by two additional months, if necessary,

7 See Authority Decision 16/2017.

8 See related Authority Decision 1/2005, which determined that the data controller must respond to the data subject's access request without vagueness and evasions, invoking reasons unrelated to the satisfaction of the right of access. See also Authority Decision 16/2017.

9 For the above, see the analysis in the EDPB Guidelines No. 01/2022 on data subjects' rights – Right of access, Version 2.1, March 28, 2023, (https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_el.pdf) and specifically see chapters 2.2.1.2 and 2.3.1 respectively (pp. 15 and 20).

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taking into account the complexity of the request and the number of requests. The data controller informs the data subject of the said extension within one month from the receipt of the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, if possible, by electronic means, unless the data subject requests otherwise. 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject without delay and no later than one month from the receipt of the request, of the reasons for not acting and the possibility of lodging a complaint with a supervisory authority and exercising a judicial remedy. Additionally, according to paragraphs 1 and 2 of Article 24 of the GDPR: "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this regulation. These measures are reviewed and updated when deemed necessary. 2. Where justified in relation to the processing activities, the measures referred to in paragraph 1 include the implementation of appropriate policies for the protection of data by the data controller."

4. Because in the above examined case, from the elements of the file, it appears that the complainant duly and clearly exercised on ... the right of access to personal data concerning him. This request, insofar as it did not impose any restriction, encompassed all personal data held by the complained company as the data controller for the complainant, especially since, as evidenced by the entirety of the file's elements (see, for example, the document dated 19-12-2023 from the complained party to the Authority), the complained party managed only one consumer credit loan agreement, and thus the volume of personal data held for him could not objectively be large. Therefore, the request dated ... from the complainant, as it was formulated, included the copy of the agreement held by the complained party, which the company logically possessed at the time of submission of the complainant's initial request. However, the complained party transmitted this element to the complainant with the email dated ..., and since there was a related telephone communication with the complainant (see the relevant email dated ... from the complained company to the complainant submitted to the Authority), and in any case not with its first response dated ... (which was sent via email to the complainant on ...) to the contentious access request. Given these facts, it appears that the request dated ... was not duly satisfied with the aforementioned first response of the complained party, as it did not include all the personal data concerning the complainant since the said copy of the agreement was not sent, and therefore, the right of access under Article 15 of the GDPR was violated in conjunction with the provision of Article 12 paragraph 3 of the GDPR, to the extent that for the aforementioned copy of the agreement, the complainant was satisfied late.

5. Because regarding the also requested recorded conversations from ... that the complainant had with representatives of the complained party, it does not appear from the elements of the file that this part of the exercised right of access was satisfied except with the sending of these after the hearing of the parties before the Authority with an email sent to the complainant on ... (as it was submitted before the Authority). And although during the hearing the complainant stated that the recorded conversations he requested had been sent to him, he clarified in his document No. Γ/ΕΙΣ/7682/06-10-2024 that this reference was incorrect and that the contentious calls had never been sent to him until the hearing. The complained company in the aforementioned email dated ... submitted to the Authority does not prove the sending but, on the contrary, accepts that it did not locate any proof of receipt of the said recorded conversations. Specifically, in the initial response dated ... from the company, which appears to have come to the knowledge of the complainant with the email dated ... from the complained party, as stated above, the latter informed the complainant that a file with the requested recorded conversations concerning him is available and that he must contact by phone with the...

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telephone center to schedule an appointment for him to collect it from the company's facilities. However, the file's details indicate that the complainant, with the email dated ..., requested the deletion of his registered postal address in the company's system because he was now residing abroad, and thus the company was aware at least from the receipt of this email that the complainant was a resident abroad and therefore there was an objective impediment for him to collect in person the electronically

requested conversations mentioned above. Furthermore, the complainant explicitly requested in the email dated ... that his above request be satisfied remotely. However, he did not receive the requested calls even with the subsequent response from the respondent dated ... (see the relevant submitted email message). This is despite the fact that the policy described in the respondent's response to the Authority regarding the satisfaction of similar requests includes the exceptional sending of recorded conversations to customers via email upon their request (see pages 2 and 3 of the respondent's views contained in the response numbered G/EIS/9034/20-12-2023 to the Authority, as well as the relevant internal policy submitted by the respondent with the numbered G/EIS/7896/14-10-2024 hearing memorandum). Moreover, in the same manner, that is, via email, the company had also sent other personal data of the complainant to him, while there had been prior telephone communications between them, as confirmed by both parties involved, without any actual issue arising regarding the identity of the requesting complainant. Specifically, the respondent company states that it was able to identify the complainant through the other identification details recorded in his request dated ... and therefore sent the email dated ... to his email address, while also on ... it sent another email to the complainant attaching contractual and other documents that the complainant had requested and emphasizing, as it claims, to the latter the need to update his details that were incorrect or inaccurate (see pages 2 and 3 of the respondent company's hearing memorandum). Therefore, with the above data, based on the relevant procedure provided for exceptional cases under the aforementioned policy, in light of Article 12(3)(b) of the GDPR, according to which when the data subject submits the request electronically, the information is also provided in electronic form, the company, regardless of the updating of the complainant's data to the extent that a related legal obligation arose, was obliged to satisfy the request dated ... for access to the recorded conversations concerning him by sending him, as he explicitly requested, a relevant email at least from the date of ..., the date on which it is evident that it was aware of the fact that the complainant resided abroad and after the complainant had been identified. Therefore, it follows from the above that the respondent violated the complainant's right of access to the recorded conversations concerning him, as it did not send them in a timely manner and in the way desired by the complainant, which was dictated by the relevant policy of the company itself, while it also created difficulties in satisfying the complainant's right, as evidenced by the above detailed history, in violation of Article 12(2) of the GDPR.

6. Since the data controller must always be able to demonstrate that the manner of processing the right of access under Article 15 of the GDPR submitted by the data subject aims to confer the broadest possible effect to this right and that it is consistent with its obligation arising from the aforementioned provisions of Article 12 of the GDPR to facilitate the exercise of the rights of data subjects.

Furthermore, regarding the form in which the response to a data subject's exercised right of access should be provided by the data controller, Article 15(3) of the GDPR, as noted above, stipulates that if the data subject submits the request by electronic means, the information is provided in the commonly used electronic format, unless the data subject requests something different. In order to determine the form that should be considered commonly used in the specific case, the data controller should assess whether there are specific formats that are generally used in the field of activity of the data controller or in the given context. When assessing whether a format is a commonly used electronic format, the European Data Protection Board considers it important that it can...

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An individual should have easy access to the requested data provided in the current format. However, the policy of the complained company indicates that there is generally a difficulty in satisfying the right of access to recorded conversations of data subjects, to the extent that the norm is for the latter to go to the company's premises, and only as an exception are other methods applied that facilitate data subjects exercising their right of access, such as sending them via email (see the submitted internal policy of the complained company). Therefore, regardless of the inadequate satisfaction of the right of access, which the complainant exercised, as mentioned in the previous considerations, the procedure defined by the internal policy of the complained company does not ensure the satisfaction of the relevant rights of access to recorded conversations primarily in the simplest possible way, as this procedure creates difficulties for data subjects and therefore the relevant policy needs to be amended so that the simplest satisfaction for data subjects becomes the norm and not the exception.

7. Because, according to what is stated in the previous considerations, it emerges on the one hand that there was inadequate satisfaction of the right of access regarding the data concerning the complainant, to the extent that in the letter dated ... and the first response of the complained party to the exercised right of access, the entirety of the complainant's personal data was not included (see above consideration 4), and on the other hand, there was a violation of the complainant's right of access (Article 15 of the GDPR) regarding the recorded conversations that concern him, since the complained company sent them late in the manner desired by the complainant and dictated by the relevant corporate policy, specifically after the hearing before the Authority, in violation of Article 12 paragraphs 2 and 3 of the GDPR (see above consideration 5). It is deemed that the relevant internal policy regarding the satisfaction of rights of access to recorded conversations needs to be amended so that the satisfaction of the relevant rights of data subjects in the simplest possible way becomes the rule and not the exception.

10 See in this regard 01/2022 Guidelines of the EDPB regarding the rights of data subjects – Right of access, Version 2.1, March 28, 2023, (https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_el.pdf) and specifically see chapters 2.3.1 and 5.2.5. (pages 22 and 62).

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of the relevant rights of data subjects in the simplest possible way, namely primarily remotely (see above consideration 6).

8. Because according to the GDPR (Recital 148) in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, should be imposed for each violation of the Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation.

9. Because based on the above, the Authority considers that there is a case to exercise its corrective powers under Article 58 paragraph 2 of the GDPR in relation to the identified violations and that, based on the circumstances identified, effective, proportionate, and deterrent administrative monetary fines should be imposed under Article 83 of the GDPR, both to restore compliance and to punish the unlawful behavior. Furthermore, the Authority took into account the criteria for determining fines set out in Article 83 paragraph 2 of the GDPR and paragraph 5 letter b of the same article that apply in this case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253) and the Guidelines 04/2022 of the European Data Protection Board for calculating administrative fines under the General Regulation, as well as the factual data of the case under examination and in particular the criteria listed subsequently, as well as the fact that another complaint had been submitted against the complained party to the Authority, prior to the case under examination, for violation of the data subject's rights, after which the Authority had sent a document to the company on 06-07-2023 (see document no. Γ/ΕΞΕ/1730/2023), in which, weighing the corresponding factual circumstances, it had drawn the attention of the latter to ensure that it satisfies the rights of data subjects within the deadlines provided in Article 12 paragraph 3 of the GDPR, taking the appropriate technical and organizational security measures and demonstrating due diligence in utilizing the contact details provided by the clients of the complained party.

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A. For the violation of the provisions of Article 15 paragraph 1 of the GDPR in conjunction with the provisions of paragraph 3 of Article 12 of the GDPR regarding the improper and, specifically, the delayed satisfaction of the right of access concerning the data related to the complainant, to the extent that in the letter dated ... and the first response of the respondent to the exercised right of access, not all personal data of the complainant were included.

i. The fact that the respondent delayed the satisfaction of the right of access exercised by the complainant under Article 15 paragraph 1 of the GDPR regarding the provision of a copy of his loan agreement, after an additional relevant telephone communication with representatives of the respondent company took place.

ii. The fact that there is no indication that any of the requested personal data of the complainant

includes special category personal data.

iii. The fact that the violation in this case affected one (1) natural person as the subject of the personal data concerning the satisfaction of the right of access.

iv. The fact that there is no evidence of intent on the part of the respondent company for the aforementioned violation.

v. The fact that from the evidence presented to the Authority, based on which it established the violation of the GDPR, the data controller did not gain any economic benefit, nor did it cause material damage to the complainant.

vi. The fact that the violation of the provisions regarding the rights of data subjects falls under, according to the provisions of Article 83 paragraph 5 subparagraph b of the GDPR, the highest category provided for in the system of administrative fines.

vii. The turnover of the respondent company as evidenced by the documents submitted by the respondent for the year 2023.

B. For the violation of the provisions of Article 15 in conjunction with paragraphs 2 and 3 of Article 12 of the GDPR regarding access to the recorded conversations that concerned the complainant, which falls under the category of subparagraph b of paragraph 5 of Article 83 of the GDPR regarding the system of administrative fines:

i. The fact that the respondent did not satisfy the right of access exercised by the complainant under Article 15 paragraph 1 of the GDPR to the recorded conversations concerning him, only after the hearing that took place before the Authority, and therefore the non-satisfaction took on a continuous character exceeding one year.

ii. The fact that there is no indication that any of the requested personal data of the complainant includes special category personal data.

iii. The fact that the violation in this case affected one (1) natural person as the subject of the personal data concerning the satisfaction of the right of access.

iv. The fact that there is no evidence of intent on the part of the respondent for the aforementioned violation.

v. The fact that from the evidence presented to the Authority, based on which it established the violation of the GDPR, the data controller did not gain any economic benefit, nor did it cause material damage to the complainant.

vi. The fact that the violation of the provisions regarding the rights of data subjects falls under, according to the provisions of Article 83 paragraph 5 subparagraph b of the GDPR, the highest category provided for in the system of administrative fines.

vii. The turnover of the respondent company as evidenced by the documents submitted by the respondent for the year 2023.

10. Because based on the above, the Authority decides to impose on the respondent company as the data controller the administrative sanctions mentioned in the operative part, which consist not only of fines but also of other appropriate measures, as deemed appropriate according to the severity of the violations.

FOR THESE REASONS

The Authority

a) Finds that the respondent company violated Article 15 paragraph 1 of the GDPR in conjunction with the provision of paragraph 3 of Article 12 of the GDPR as it proceeded to an improper and specifically delayed satisfaction of the right of access concerning the data related to the complainant, as mentioned in considerations 4 and 7, and imposes on it for this violation an administrative fine of one thousand (1,000.00€) euros, in accordance with Article 58 paragraph 2 subparagraph (h) of the GDPR.

b) Finds that the respondent company violated the complainant's right of access (Article 15 of the GDPR) regarding the recorded conversations concerning him, as it sent them in the manner desired by the complainant and dictated by the relevant corporate policy late, specifically after the hearing before the Authority, in violation of Article 12 paragraphs 2 and 3 of the GDPR, as mentioned in considerations 5 and 7, and imposes on it for this violation an administrative fine of two thousand

(2,000.00€) euros, in accordance with Article 58 paragraph 2 subparagraph (h) of the GDPR.

c) Finds that the internal policy of the company regarding the manner of satisfying the right of access to recorded conversations violates the provision of Article 12 paragraph 2 of the GDPR as detailed in consideration 6 of this decision and therefore issues an order to the respondent company to amend this internal policy within thirty (30) days from the notification of this decision, so that the simplest possible satisfaction for the data subjects becomes the rule and not the exception, and to subsequently inform the Authority of its actions. In any case, the Authority reserves the right to re-examine the case, particularly regarding the overall practice followed by the respondent company, especially in the event of the Authority examining more related complaints.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou